

Last Will and Testament of Berdia Monson

I, Berdia Monson, a resident of Jefferson County, Arkansas, on this day, August 14, 2023, revoke any prior wills and codicils made by me and declare this to be my Last Will and Testament (hereinafter referred to as "Will").

Article One Family Information

Section 1.01 Marital Status

I am widowed.

Section 1.02 My Children and Descendants

I have three children:

Karen LaRue Kirklin (born September 13, 1954; deceased)

Reneta Michelle Harper (born January 29, 1959)

Charles Toliver (born July 29, 1971)

All references in my Will to "my children" include all of these children, whether living or deceased.

References to "my descendants" are to my children and their descendants.

Section 1.03 Other Beneficiaries

I have provided for my granddaughter Kimberly Fox-Stepps in my Will.

Section 1.04 Deceased Family Members

I wish to honor the memory of Karen LaRue Kirklin (deceased March 8, 2022). However, I am specifically disinheriting Karen LaRue Kirklin and her descendants. Therefore, for the purposes of my Will, Karen LaRue Kirklin and her descendants are presumed to have predeceased me unless specifically named above.

Article Two

Tangible Personal Property

Section 2.01 Distribution of Tangible Personal Property by Memorandum

My Personal Representative will distribute the tangible personal property that I have listed in a separate written memorandum to the people specified in the memorandum. If a listed item is insured, the person who receives the item will also receive the insurance policy and succeed to any claims under the policy. If there is a conflict among multiple memoranda, the latest memorandum will control.

Section 2.02 Distribution of Remaining Tangible Personal Property

My Personal Representative will distribute my remaining tangible personal property to my children, but not to their descendants, in shares of substantially equal value, to be divided among my children as they agree. If my Personal Representative determines that a child is incapable of acting in his or her own best interest, my Personal Representative will appoint a person to represent the child in the division of the property.

If my children are unable to agree upon the division of the property within six months after my death, my Personal Representative will make the division. My Personal Representative may use a lottery or rotation system or any other method of allocation to determine the order of selection and distribution of the property. As an alternative, my Personal Representative may sell all or any portion of the property and distribute the net proceeds equally among my children who are then living.

If none of my children are then living, my Personal Representative will distribute such property according to the Articles that follow.

Any tangible personal property distributed under this Section also includes any insurance policies covering the property and any claims under those policies.

Section 2.03 Definition of Tangible Personal Property

For purposes of this Article, the term "tangible personal property" includes, but is not limited to, household furnishings, appliances and fixtures, works of art, motor vehicles, pictures, collectibles, personal wearing apparel and jewelry, books, sporting goods, and hobby paraphernalia. The term does not include any tangible property that my Personal Representative, in my Personal Representative's sole and absolute discretion, determines to be part of any business or business interest that I own at death.

Section 2.04 Ademption

If property to be distributed under this Article becomes part of my probate estate in any manner after my death, then the gift will not adeem simply because it was not a part of my probate estate at my death. My Personal Representative will distribute the property as a specific gift in accordance with this Article. But if property to be distributed under this Article is not part of my probate estate at my death and does not subsequently become part

of my probate estate, then the specific gift made in this Article is null and void, without any legal or binding effect.

Section 2.05 Incidental Expenses and Encumbrances

Until property distributed in accordance with this Article is delivered to the appropriate beneficiary or to the beneficiary's legal representative, my Personal Representative will pay the reasonable expenses of securing, storing, insuring, packing, transporting, and otherwise caring for the property as an administration expense. Except as otherwise provided in my Will, my Personal Representative will distribute property under this Article subject to all liens, security interests, and other encumbrances on the property.

Article Three Residuary to My Descendants

My residuary estate will be distributed outright, free of trust to my descendants, per stirpes, treating those descendants that I have specifically disinherited under Article One, entitled "Family Information," as though they had predeceased me. However, if at the time of distribution, the descendant is a Supplemental Needs Person, then the descendant's share will be administered according to the provisions of Article Five, entitled "Supplemental Needs Trust."

Section 3.01 Funding Shares on a Non-Pro Rata Basis

If my residuary estate is divided into two or more shares, my Personal Representative may fund the shares on a non-pro rata basis, provided that funding is based on the total fair market value of the assets when allocated.

Article Four Remote Contingent Distribution

If, at any time, the other provisions of my Will fail to provide for a beneficiary of any part of my probate estate or a part of any trust created under my Last Will and Testament, then that part will be distributed to those persons who would inherit it had I then died intestate owning the property, as determined and in the proportions provided by the laws of Arkansas then in effect.

I have specifically disinherited Karen LaRue Kirklin and her descendants. Therefore, for the purposes of this Article, Karen LaRue Kirklin and her descendants are presumed to have predeceased me.

Article Five

Supplemental Needs Trust

Estate property will be administered pursuant to the terms of this Supplemental Needs Trust Article when:

- (i) another Article of my Will directs that the property is to be administered as provided in this Supplemental Needs Trust Article; or
- (ii) the beneficiary of the property under another Article of my Will is a Supplemental Needs Person, unless the other Article directs the beneficiary's interest to be distributed to a trust not created under this document.

"Beneficiary" under this Supplemental Needs Trust Article refers to the beneficiary of the property under the other Article. The provisions of the other Article shall continue to apply to the extent they do not conflict with the provisions of this Supplemental Needs Trust Article; specifically, the provisions of this Supplemental Needs Trust Article shall control the distributions of income and principal.

Section 5.01 Distributions of Income and Principal

The Trustee shall collect income and, after deducting all charges and expenses attributed thereto, may apply for Beneficiary's benefit, in-kind, or in cash, so much of the income and principal (even to the extent of the whole) as the Trustee deems advisable in the Trustee's sole and absolute discretion, **subject to the limitations set forth below**. The Trustee shall add the balance of net income not paid or applied to the principal of the Supplemental Needs Trust.

(a) Maximize Benefits

Consistent with the purpose of the Supplemental Needs Trust, before expending any amounts from the net income and/or principal of this trust, the Trustee shall consider the availability of all benefits from government or private assistance programs for which Beneficiary may be eligible. The Trustee, where appropriate and to the extent possible, shall endeavor to maximize the collection and facilitate the distribution of these benefits for Beneficiary's benefit.

(b) No Reduction in Benefits

None of the income or principal of the Supplemental Needs Trust shall be applied in such a manner as to supplant, impair, or diminish any governmental benefits or assistance for which Beneficiary may be eligible or which Beneficiary may be receiving.

(c) No Assignment

Beneficiary shall not have the power to assign, encumber, direct, distribute, or authorize distributions from the Supplemental Needs Trust.

(d) Supplemental Needs Trust Savings Clause

Notwithstanding any provision of any Article herein to the contrary, in the event that the Supplemental Needs Trust is challenged or faces imminent invasion by any governmental department or agency in such a way as to affect Beneficiary's eligibility for benefits available under any governmental program, the Trustee must terminate the trust and distribute the trust income and principal as if Beneficiary were then deceased.

Section 5.02 Definition of Supplemental Needs

"Supplemental needs" refers to the requisites for maintaining the good health, safety, and welfare of Beneficiary when, in the sole and absolute discretion of the Trustee, such requisites are not being provided by any public agency, office, or department of any state or of the United States.

Supplemental needs shall also include, but not be limited to, medical and dental expenses, annual independent checkups, clothing and equipment, programs of training, education, treatment and rehabilitation, private residential care, transportation (including vehicle purchases), maintenance, insurance, and essential dietary needs. Supplemental needs may include additional food; clothing; electronic equipment, such as radio equipment, recording and playback equipment, television equipment, and computer equipment; camping; vacations; athletic contests; movies; trips; and money to purchase appropriate gifts for relatives and friends. However, in deciding whether to make these distributions the Trustee must first consider the impact on certain government benefits as is directed in Section 5.05, entitled "Distribution Guidelines."

The Trustee shall have no obligation to expend trust assets for such needs, but if the Trustee, in the Trustee's sole and absolute discretion, decides to expend trust assets, under no circumstances should any amounts be paid to, or reimbursed to, the federal government, any state, or any governmental agency for any purpose, including for the care, support, and maintenance of Beneficiary.

Section 5.03 Objective to Promote Independence of Beneficiary

While actions are in the Trustee's sole and absolute discretion, the Trustee should be mindful that it is my wish that Beneficiary live as independently, productively, and happily as possible.

Section 5.04 Not Available Resource to Beneficiary

It is my intent to create a Supplemental Needs Trust that conforms to Arkansas law (or if Beneficiary is not a resident of Arkansas, to the law of the state where Beneficiary resides), in order to provide for Beneficiary's Supplemental Needs. I intend that the trust assets be used to supplement, not supplant, impair, or diminish, any benefits or assistance of any Federal, state, county, city, or other governmental entity for which Beneficiary may otherwise be eligible or which Beneficiary may be receiving.

Consistent with that intent, it is my desire that, before expending any amounts from net income and/or principal of the trust, the Trustee consider the availability of all benefits

from government or private assistance programs for which Beneficiary may be eligible and that, where appropriate and to the extent possible, the Trustee endeavors to maximize the collection of such benefits and to facilitate the distribution of such benefits for the benefit of Beneficiary. All actions of the Trustee shall be directed toward carrying out this intent and the discretion granted the Trustee under my Will to carry out this intent is absolute.

For purposes of determining Beneficiary's eligibility for any such benefits, no part of the principal or undistributed income of the Supplemental Needs Trust shall be considered available to Beneficiary for public benefit purposes. Beneficiary shall not be considered to have access to principal or income of the trust, and he or she has no ownership, right, authority, or power to convert any asset into cash for his or her own use.

The Trustee shall hold, administer, and distribute all property allocated to the Supplemental Needs Trust for the exclusive benefit of Beneficiary during his or her lifetime. All distributions from the trust are in the sole and absolute discretion of the Trustee, and Beneficiary is legally restricted from demanding trust assets for his or her support and maintenance.

In the event the Trustee is requested to release principal or income of the Supplemental Needs Trust to or on behalf of Beneficiary to pay for equipment, medication, or services that any government agency is authorized to provide, or in the event the Trustee is requested to petition a court or any other administrative agency for the release of trust principal or income for this purpose, the Trustee is authorized to deny such request and is authorized in its sole and absolute discretion to take whatever administrative or judicial steps may be necessary to continue Beneficiary's eligibility for benefits, including obtaining legal advice about Beneficiary's specific entitlement to public benefits and obtaining instructions from a court of competent jurisdiction ruling that neither the trust corpus nor the trust income is available to Beneficiary for eligibility purposes. Any expenses of the Trustee in this regard, including reasonable attorney's fees, shall be a proper charge to the Supplemental Needs Trust.

Section 5.05 Distribution Guidelines

Consistent with the purpose of the Supplemental Needs Trust, before expending any amounts from the net income and/or principal of the trust, the Trustee shall consider the availability of all benefits from government or private assistance programs for which Beneficiary may be eligible. The Trustee, where appropriate and to the extent possible, shall endeavor to maximize the collection and facilitate the distribution of these benefits for the benefit of Beneficiary. In making distributions, the Trustee will:

- (i) consider any other known income or resources of Beneficiary that are reasonably available;
- (ii) take into consideration all entitlement benefits from any government agency, such as Social Security Disability payments (SSDI), Medicaid, Department of Human Services, Supplemental Security Income (SSI), and any other special purpose benefits for which Beneficiary is eligible;

- (iii) take into consideration resource and income limitations of any such assistance program;
- (iv) make expenditures so that Beneficiary's standard of living will be comfortable and enjoyable;
- (v) not be obligated or compelled to make specific payments;
- (vi) not pay or reimburse any amounts to any governmental agency or department, unless proper demand is made by such governmental agency and reimbursement is required by the state; and
- (vii) not be liable for any loss of benefits.

Section 5.06 Use of Care Manager

The Trustee shall have the option of utilizing the services of a Care Manager to assist in advising on how best to provide for Beneficiary's needs. The primary objective of the Care Manager is to assist the Trustee in carrying out the purposes of the Supplemental Needs Trust to ensure that Beneficiary maintains a safe living situation, receives counseling services when appropriate, and lives as independently as possible.

A Care Manager shall be a professional Licensed Clinical Social Worker, Professional Conservator, or care management agency that has experience in the field of assessment of conditions similar to those of Beneficiary and is familiar with the public benefits to which Beneficiary may be entitled.

(a) Distribution Advisement

If the Trustee uses a Care Manager, the Care Manager shall advise the Trustee concerning discretionary distributions to be made from the trust that are helpful and appropriate for Beneficiary's needs including payment for medical care, counseling services, and daily support.

(b) Annual Care Plan

If the Trustee uses a Care Manager, the Care Manager shall provide to the Trustee, at least annually, a written care plan for purposes of evaluation of Beneficiary's medical and psychosocial status. The care plan shall include recommendations concerning resources and services beneficial to Beneficiary.

(c) Quarterly Assessments

If the Trustee uses a Care Manager, the Care Manager shall, at least quarterly, visit Beneficiary to assess his or her physical and emotional needs including the appropriateness of present placement, monitoring attendant care, accessing required resources, making and keeping medical appointments, and accessing socialization activities.

(d) Compensation of the Care Manager

If the Trustee uses a Care Manager, the Care Manager shall be entitled to fair and reasonable compensation for the services it renders. The amount of compensation shall be an amount equal to the customary and prevailing charges for services of a similar nature during the same period of time and in the same geographic locale.

(e) The Resignation of a Care Manager

Any Care Manager may resign by giving thirty (30) days' written notice to the Trustee.

(f) Replacement of Care Manager

The Trustee may terminate the Care Manager without cause and name a replacement. If a Care Manager cannot serve for any reason, the Trustee may name a replacement, which may begin to serve immediately. If the Care Manager must be replaced, then the successor Care Manager shall also be a professional Licensed Clinical Social Worker, Professional Conservator, or care management agency who has experience in the field of assessment of conditions similar to those of Beneficiary and is familiar with the public benefits to which Beneficiary may be entitled.

Section 5.07 No Seeking of Order to Distribute

For purposes of determining Beneficiary's state Medicaid program equivalent eligibility, no part of the principal or undistributed income of the Supplemental Needs Trust may be considered available to Beneficiary. The Trustee will deny any request by Beneficiary to:

- (i) release principal or income of the trust to or on behalf of Beneficiary to pay for equipment, medication, or services that the state Medicaid program equivalent would provide if the trust did not exist; or
- (ii) petition a court or any other administrative agency for the release of trust principal or income for this purpose.

The Trustee may, in its sole and absolute discretion, take necessary administrative or legal steps to protect Beneficiary's state Medicaid program eligibility, including obtaining a ruling from a court of competent jurisdiction that the trust principal is not available to Beneficiary for purposes of determining eligibility. Expenses for this purpose, including reasonable attorney's fees, are a proper charge to Beneficiary's Supplemental Needs Trust.

Section 5.08 Indemnification of Trustee When Acting in Good Faith

The Trustee shall be indemnified from the trust property for any loss or reduction of public benefits sustained by Beneficiary as a result of the Trustee exercising, in good faith, the authority granted to the Trustee under this Article.

Section 5.09 Termination and Distribution of Supplemental Needs Trust

If the Trustee, in its sole and absolute discretion, determines that Beneficiary is no longer dependent on others and is able to provide independent support, the Trustee shall distribute or retain the remaining Supplemental Needs Trust property according to the other provisions of my Will as though the provisions of this Article had not been effective.

If the other provisions of my Will do not provide for the distribution or retention of the remaining property, then the Trustee shall distribute the remaining property to Beneficiary outright, free of trust.

“Independent support” shall be satisfied at such time as Beneficiary has been gainfully employed for thirty-three (33) months of a thirty-six (36) month period immediately preceding the decision to terminate the trust share.

The terms “gainful employment” and “gainfully employed” shall be construed to mean such full-time employment that produces sufficient net income to enable Beneficiary to contribute not less than 100 percent of the funds (exclusive of other sources of revenue) that are necessary to provide for the independent care, support, maintenance, and education of Beneficiary. The Trustee, in its sole and absolute discretion, shall determine whether or not Beneficiary has satisfied the condition of gainful employment.

Section 5.10 Distribution Upon the Death of Beneficiary

Upon the death of Beneficiary, the Trustee shall distribute or retain the remaining Supplemental Needs Trust property according to the other Article of my Will that directed the property to be held pursuant to this Article.

If the other Article does not provide for distribution upon the death of Beneficiary, then the Trustee shall distribute or retain the remaining Supplemental Needs Trust property as though Beneficiary had predeceased me.

Section 5.11 Waiver of Court Invasion of Principal

Under no circumstances shall Supplemental Needs Trust principal be subject to any court-directed invasion pursuant to the provisions of the laws of Arkansas or any other state.

Section 5.12 Prohibition Against Beneficiary Serving as Trustee

Notwithstanding any other provision of my Will, under no circumstances may Beneficiary serve as Trustee of any share that is being administered for his or her benefit under the provisions of this Supplemental Needs Trust Article.

Section 5.13 Limitation on Power to Remove and Replace Trustee

Notwithstanding any other provision of my Will, Beneficiary has the power to remove the Trustee of the Supplemental Needs Trust, but may not appoint the replacement Trustee.

Section 5.14 No Power to Adjust from Principal to Income

Notwithstanding any provision of my Will or state law to the contrary, in no event may the Trustee adjust between income and principal if such adjustment would cause any public benefit program to consider the adjusted principal or income to be an available resource or available income, or if such adjustment would otherwise supplant any governmental benefit that Beneficiary is entitled to receive.

Section 5.15 No General Power of Appointment

Notwithstanding any provision of my Will or state law to the contrary, Beneficiary shall not have a lifetime or testamentary general power of appointment as defined in Section 2041 of the Internal Revenue Code, or as defined under Arkansas law, or the laws of any other state.

Section 5.16 Application of Article

Any decision made by the Trustee under this Article shall be final, controlling, and binding upon all beneficiaries, subject to the provisions of this Article.

Article Six

Designation of Personal Representative and Trustee

Section 6.01 Personal Representative

I appoint the following, in the order named, as my Personal Representative:

First: Reneta Michelle Harper

Second: Charles Toliver

Section 6.02 Trustee of the Supplemental Needs Trust

If a Supplemental Needs Trust is created pursuant to Article Five, my Personal Representative shall appoint a Trustee for such trust. If my Personal Representative fails to appoint a Trustee, or if there is a vacancy in the office of Trustee, then the beneficiary of the trust or his or her representative may petition a court to appoint a Trustee.

The acting Trustee of the trust may appoint a successor Trustee. Notwithstanding the appointment of a Trustee by my Personal Representative or the acting Trustee, the beneficiary of the trust or his or her representative, with or without cause, may petition a court to remove any Trustee and appoint a successor Trustee.

Section 6.03 Prohibition Against SNT Beneficiary Serving as Trustee

Notwithstanding any other provision of my Will, under no circumstances may the beneficiary of a share of my estate that is being administered pursuant to the terms of Article Five, entitled "Supplemental Needs Trust," serve as Trustee of that share.

Article Seven

General Administrative Provisions

The provisions of this Article apply to my probate estate and to any trust created under my Will.

Section 7.01 No Bond

No Fiduciary is required to furnish any bond for the faithful performance of the Fiduciary's duties, unless required by a court of competent jurisdiction and only if the court finds that a bond is needed to protect the interests of the beneficiaries. No surety will be required on any bond required by any law or rule of court, unless the court specifies that a surety is necessary.

Section 7.02 Informal Proceedings

I authorize my personal representative to exercise all powers without court supervision under the applicable statutes of my state.

Section 7.03 Fiduciary Compensation

An individual serving as my Fiduciary shall be entitled to fair and reasonable compensation for the services rendered as a fiduciary. A corporate fiduciary shall be compensated by agreement with an individual Fiduciary or, in the absence of an individual Fiduciary or in the absence of an agreement, in accordance with the corporate fiduciary's published schedule of fees in effect at the time the services are rendered.

My Fiduciary may charge additional fees for services it provides that are not comprised within its duties as my Fiduciary such as fees for legal services, tax return preparation, and corporate finance or investment banking services.

In addition to receiving compensation, my Fiduciary may be reimbursed for reasonable costs and expenses incurred in carrying out its duties under my Will.

Section 7.04 Determination of Principal and Income

The provisions of Arkansas law related to the allocation of principal and income shall govern beneficiaries' rights among themselves in matters concerning principal and income. If Arkansas law contains no provision concerning a particular item, my Fiduciary shall determine in a fair, equitable, and practical manner what shall be credited, charged, and apportioned between principal and income.

Section 7.05 Self-Dealing

If a descendant of mine is serving as my Fiduciary, he or she may engage in acts of self-dealing, even though state law restricts acts of self-dealing. Unless expressly prohibited by another provision of my Will, a descendant of mine who is serving as my Fiduciary may

enter into transactions on behalf of my estate in which my Fiduciary is personally interested so long as the terms of such transaction are fair to my estate. For example, a descendant of mine who is serving as my Fiduciary may purchase property from my estate at its fair market value without court approval.

Section 7.06 Spendthrift Provision

Neither the income nor the principal of any trust created under my Will may be assigned, anticipated, encumbered, alienated, or otherwise voluntarily transferred in any manner by any beneficiary. In addition, neither the income nor the principal of any trust created under my Will is subject to attachment, bankruptcy proceedings or any other legal process, to the interference or control of creditors or others, or otherwise subject to any involuntary transfer.

This section does not restrict a beneficiary's right to disclaim any interest or the exercise of any power of appointment granted in my Will or under the terms of any trust created under my Will.

Section 7.07 Distributions for Underage and Incapacitated Beneficiaries

If under another provision of my Will, any part of my probate estate is directed or required to be distributed outright to an individual who has not yet attained the age of 25 years or is incapacitated, then my Personal Representative may distribute or retain that part of my probate estate as described in this Section, unless the provisions of Article Five, entitled "Supplemental Needs Trust," apply.

When making a distribution, I request, but do not require, that my Personal Representative consider the ability that the individual demonstrated in managing prior distributions. All decisions made by my Personal Representative under this Section are final, controlling, and binding upon all beneficiaries subject to the provisions of this Section.

Property to which this Section applies may be:

- (i) distributed directly to the beneficiary;
- (ii) distributed to the beneficiary's guardian, conservator, parent, family member, or other person who has assumed responsibility for his or her care;
- (iii) distributed to any person or entity, including my Personal Representative, as custodian for the beneficiary under the Uniform Transfers to Minors Act, or similar statute;
- (iv) distributed to other persons or entities for the benefit of the beneficiary;
- (v) distributed to an agent authorized to act for the beneficiary under a power of attorney for property;
- (vi) retained in trust, with my Personal Representative acting as trustee, distributing income and principal for any purpose, in any amount, using any of the methods described above, all in my Personal Representative's sole and absolute discretion, and upon the beneficiary's death distributing the remainder as appointed by the beneficiary, and if not appointed, as though the beneficiary had predeceased me;

- (vii) retained in trust pursuant to the provisions of Article Five, entitled "Supplemental Needs Trust," for the benefit of the beneficiary; or
- (viii) distributed or retained in any combination of one or more of the above.

Section 7.08 Maximum Term for Trusts

Notwithstanding any other provision of my Will to the contrary, unless terminated earlier under other provisions of my Will, each trust created under my Will terminates 21 years after the last to die of the descendants of my maternal and paternal grandparents, who are alive at the relevant time.

At that time, the remaining trust property will vest in and be distributed to the persons then entitled to receive mandatory distributions of net income of the trust and in the same proportions to which they are entitled to receive the net income. If no beneficiary is entitled to receive mandatory distributions of net income, then the remaining trust property will vest in and be distributed to the beneficiaries then entitled to receive discretionary distributions of net income of the trust, in equal shares.

Section 7.09 Representative of a Beneficiary

The guardian, natural parent, or agent under a validly executed power of attorney of a beneficiary may act for such beneficiary for all purposes under my Will or may receive information on behalf of such beneficiary.

Section 7.10 Ancillary Administration

In the event ancillary administration shall be required or desired and my domiciliary Personal Representative is unable or unwilling to act as an ancillary fiduciary, my domiciliary Personal Representative shall have the power to designate, compensate, and remove, with court approval, the ancillary fiduciary. The ancillary fiduciary may be either a natural person or a corporation. My domiciliary Personal Representative may delegate to such ancillary fiduciary such powers granted to my original Personal Representative as my Personal Representative may deem proper, including the right to serve without bond or surety on bond. The net proceeds of the ancillary estate shall be paid over to the domiciliary Personal Representative.

Section 7.11 Delegation of Authority; Power of Attorney

To the extent permitted by law, any Fiduciary may, by an instrument in writing, delegate to any other Fiduciary the right to exercise any power, including a discretionary power, granted the Fiduciary in my Will. During the time a delegation under this Section is in effect, the Fiduciary to whom the delegation was made may exercise the power to the same extent as if the delegating Fiduciary had personally joined in the exercise of the power. The delegating Fiduciary may revoke the delegation at any time by giving written notice to the Fiduciary to whom the power was delegated.

The Fiduciary may execute and deliver a revocable or irrevocable power of attorney appointing any individual or corporation to transact any and all business on behalf of the

trust. The power of attorney may grant to the attorney-in-fact all of the rights, powers, and discretion that the Fiduciary could have exercised.

Section 7.12 Merger of Corporate Fiduciary

If any corporate fiduciary acting as my Fiduciary under my Will is merged with or transfers substantially all of its trust assets to another corporation or if a corporate fiduciary changes its name, the successor shall automatically succeed to the position of my Fiduciary as if originally named my Fiduciary. No document of acceptance of the position of my Fiduciary shall be required.

Article Eight Powers of My Fiduciaries

Section 8.01 Grant of Powers

My Fiduciaries may perform every act reasonably necessary to administer my estate and any trust established under my Will. Specifically, my Fiduciaries may:

- (i) hold, retain, invest, reinvest, and manage real or personal property, including interests in any form of business entity including but not limited to, limited partnerships and limited liability companies, and policies of life, health, and disability insurance, without diversification as to kind, amount, or risk of non-productivity and without limitation by statute or rule of law;
- (ii) partition, sell, exchange, grant, convey, deliver, assign, transfer, lease, option, mortgage, pledge, abandon, borrow, loan, and contract real or personal property;
- (iii) distribute in cash or kind or partly in each at fair market value on the date of distribution, without requiring pro rata distribution of specific assets and without requiring pro rata allocation of the tax bases of such assets;
- (iv) hold in nominee form, continue businesses, carry out agreements, and deal with themselves, other Fiduciaries and business organizations in which my Fiduciaries may have an interest, as limited by Section 7.05;
- (v) establish reserves, release powers, and abandon, settle, or contest claims; and
- (vi) employ attorneys, accountants, custodians of the trust assets, and other agents or assistants as deemed advisable to act with or without discretionary powers and compensate them and pay their expenses from income or principal or both.

Section 8.02 Fiduciary Powers Act

In addition to the above powers, my Personal Representative may, without prior authority from any court, exercise all powers conferred by my Will, by common law, or by any fiduciary powers act or other statute of the State of Arkansas or any other jurisdiction whose law applies to my Will. My Personal Representative shall have absolute discretion

in exercising these powers. Except as specifically limited by my Will, these powers shall extend to all property held by my Fiduciaries until the actual distribution of the property.

Section 8.03 Alternative Distribution Methods

Unless specifically prohibited elsewhere in my Will, my Fiduciary may make any payment provided for under my Will, or under the terms of any trust established under my Will, as follows:

- (i) directly to the beneficiary;
- (ii) in any form allowed by applicable state law for gifts or transfers to minors or persons under a disability;
- (iii) to the beneficiary's guardian, conservator, agent under a durable power of attorney or caregiver for the benefit of the beneficiary; or
- (iv) by direct payment of the beneficiary's expenses, made in a manner consistent with the proper exercise of my Fiduciary's duties hereunder. A receipt by the recipient for any such distribution shall fully discharge my Fiduciary.

Article Nine Provisions for Payment of Taxes

Section 9.01 Apportionment

Except as otherwise specified, I direct that all estate, inheritance, and succession taxes payable by reason of my death ("death taxes") be apportioned as provided under the law of the State of Arkansas in effect at the date of my death. In so doing, my Personal Representative shall charge the death taxes only against the property generating the tax. The values used in determining the tax are to be used for tax apportionment purposes.

To the extent practicable, my Personal Representative shall deduct the amount of the death taxes from the property distributable under my Will and recover from the beneficiaries of property passing other than by my Will their allocable share of death taxes, unless my Personal Representative in its discretion determines that the cost of recovery is greater than such recovery warrants. If death taxes are not collected from the beneficiary of property passing other than by my Will, my Personal Representative shall apportion the amount not recovered equitably among the other beneficiaries who are subject to apportionment.

Section 9.02 No Apportionment Between Current and Future Interests

No interest in income and no estate for years or for life or other temporary interest in any property or trust are subject to apportionment as between the temporary interest and the remainder. The tax on the temporary interest and the tax, if any, on the remainder are

chargeable against the corpus of the property or trust subject to the temporary interest and remainder.

Section 9.03 Tax Elections

In exercising any permitted elections regarding taxes, my fiduciaries may make such decisions as they deem to be appropriate in all the circumstances and my fiduciaries shall be under no duty to make any compensatory adjustment as a consequence of any such election. My Personal Representative may also pay such taxes or interest and deal with any tax refunds, interest, or credits as it shall deem necessary or advisable in the interest of my estate.

Article Ten

Definitions and General Provisions

Section 10.01 Burial Instructions

I wish that my remains be buried in accordance with any known instructions left by me, whether in writing or orally given to any family member. If I have failed to leave instructions regarding the burial of my remains, I wish that my remains be buried as my Personal Representative sees fit.

Section 10.02 Payment for Funeral and Burial or Cremation

My Personal Representative is authorized but not required to pay expenses for my funeral and burial or cremation, including expenses of memorials and memorial services. No third party may enforce any claim or right to payment against my estate by virtue of this discretionary authority.

Section 10.03 Definitions

For purposes of my Will and for the purposes of any trust established under my Will, the following definitions shall apply:

(a) Adopted and Afterborn Persons

A legally adopted person in any generation and his or her descendants, including adopted descendants, shall have the same rights and shall be treated in the same manner under my Will as would children born of the adopting parent, provided such person is legally adopted prior to attaining the age of 18 years. A person shall be deemed to be legally adopted if the adoption was legal in the jurisdiction in which it occurred at the time that it occurred.

A fetus in utero that is later born alive shall be considered a person in being during the period of gestation.

(b) Descendants

The term “descendants” means the lineal descendants of all generations of the identified person, and includes children whose relationships with their parents arose from any of the following:

- (i) natural birth;
- (ii) legal adoption;
- (iii) court declaration of parentage; and
- (iv) recognition of parent-child relationship by state law for children born during a domestic partnership, civil union, or marriage.

(c) Fiduciary

My “Fiduciary” or “Fiduciaries” refers to my Personal Representative and my Trustee, or if they are different people, either of them. My “Personal Representative” includes any executor, temporary executor, preliminary executor, ancillary executor, administrator, or ancillary administrator, whether local or foreign and whether of all or part of my estate, multiple Personal Representatives, and their successors.

(d) Incapacity

Except as otherwise provided in my Will, a person is deemed incapacitated in any one of the following circumstances.

(1) The Opinion of a Licensed Physician

An individual is deemed incapacitated whenever, in the opinion of a licensed physician, the individual is unable to effectively manage his or her property or financial affairs, whether as a result of age, illness, use of prescription medications, drugs or other substances, or any other cause.

An individual is deemed restored to capacity whenever the individual’s personal or attending physician provides a written opinion that the individual is able to effectively manage his or her property and financial affairs.

(2) Court Determination

An individual is deemed incapacitated if a court of competent jurisdiction has declared the individual to be disabled, incompetent, or legally incapacitated.

(3) Disappearance, Absence, or Detention

An individual is deemed incapacitated whenever, in my Trustee’s sole and absolute discretion, he or she cannot effectively manage his or her property or financial affairs

due to disappearance, absence, or detention (including incarceration).

A person's disappearance, absence, or detention (including incarceration), may be established by an affidavit of my Trustee describing the relevant circumstances. A third party dealing in good faith with my Trustee may rely on the affidavit as conclusive evidence of incapacity.

(e) Legal Representative

As used in my Will, the term "legal representative" means a person's guardian, conservator, personal representative, executor, administrator, Trustee, or any other person or entity personally representing a person or the person's estate.

(f) Per Stirpes

Whenever a distribution is to be made to a person's descendants "per stirpes," the distribution will be divided into as many equal shares as there are then-living children of the person and deceased children of the person who left then-living descendants. Each then-living child will receive one share and the share of each deceased child will be divided among such child's descendants in the same manner.

(g) Primary Beneficiary

The primary beneficiary of a trust created under my Will is the oldest income beneficiary of that trust unless some other individual is specifically designated as the primary beneficiary of that separate trust.

(h) Shall, Must, and May

Unless otherwise specifically provided in my Will or by the context in which used, the words "shall" and "must" are used interchangeably to command, direct, or require, and the word "may" to allow or permit, but not require. In the context of my Fiduciary, the word "may" is used to authorize my Fiduciary to act in my Fiduciary's sole and absolute discretion, unless otherwise stated. In addition, unless otherwise specifically provided in my Will or by the context in which used, the phrases "shall not," "must not," and "may not" are used interchangeably to prohibit or forbid.

(i) Supplemental Needs Person

The term "Supplemental Needs Person" means a person who:

- (i) is disabled; or
- (ii) is receiving, or is eligible to receive, assistance or other benefits under a means-based government program (such as Medicaid or Supplemental Security Income).

As used above, the term “disabled” means disabled as defined in United States Code Title 42, Section 1382c(a)(3), or any other federal law related to means-based government programs for the disabled, or under Arkansas law related to means-based government programs, or under the law related to means-based government programs in the state where the person resides if the person is not a resident of Arkansas.

As used above, the term “assistance” means assistance or medical assistance as defined in United States Code Title 42, Section 1396d(a), or any other federal law related to means-based government programs for the disabled, or under Arkansas law related to means-based government programs, or under the law related to means-based government programs in the state where the person resides if the person is not a resident of Arkansas.

As used above, a person is “eligible to receive” assistance or other benefits under a means-based government program if the person has been deemed eligible by the agency overseeing the program, or if the Trustee, in the Trustee’s sole and absolute discretion, determines that the person would be eligible to receive such assistance or other benefits if an application were made.

(j) Other Definitions

Except as otherwise provided in my Will, terms shall be as defined under Arkansas law.

Section 10.04 Contest Provision

If, after receiving a copy of this Section, any person shall, in any manner, directly or indirectly, attempt to contest or oppose the validity of my Will, (including any codicil to my Will), or commences, continues, or prosecutes any legal proceedings to set my Will aside, then such person shall forfeit his or her share, cease to have any right or interest in my estate, and shall, for purposes of my Will be deemed to have predeceased me.

This Section shall not apply so as to cause a forfeiture of any distribution otherwise qualifying for the federal estate tax charitable deduction.

Section 10.05 Survivorship Presumption

If a beneficiary dies within 45 days after my death, then the beneficiary will be deemed to have predeceased me for purposes of my Will.

Section 10.06 General Provisions

The following general provisions and rules of construction shall apply to my Will:

(a) Singular and Plural; Gender

Unless the context requires otherwise, words denoting the singular may be construed as plural and words of the plural may be construed as denoting the singular. Words of one gender may be construed as denoting another

gender as is appropriate within the context. The word "or" when used in a list of more than two items may function as both a conjunction and a disjunction as the context requires or permits.

(b) Headings of Articles, Sections, and Subsections

The headings of Articles, Sections, and subsections used within my Will are included solely for the convenience and reference of the reader. They shall have no significance in the interpretation or construction of my Will.

(c) Governing State Law

My Will shall be governed, construed, and administered according to the laws of Arkansas as from time to time amended. Questions of administration of any trust established under my Will shall be determined by the laws of the situs of administration of such trust.

(d) Notices

Unless otherwise stated, whenever my Will calls for notice, the notice shall be in writing and shall be personally delivered with proof of delivery, or mailed postage prepaid by certified mail, return receipt requested, to the last known address of the party requiring notice. Notice shall be effective on the date personally delivered or on the date of the return receipt. If a party giving notice does not receive the return receipt but has proof that he or she mailed the notice, notice shall be effective on the date it would normally have been received via certified mail. If notice is required to be given to a minor or incapacitated individual, notice shall be given to the parent or legal representative of the minor or incapacitated individual.

(e) Severability

The invalidity or unenforceability of any provision of my Will shall not affect the validity or enforceability of any other provision of my Will. If a court of competent jurisdiction determines that any provision is invalid, the remaining provisions of my Will shall be interpreted and construed as if any invalid provision had never been included in my Will.

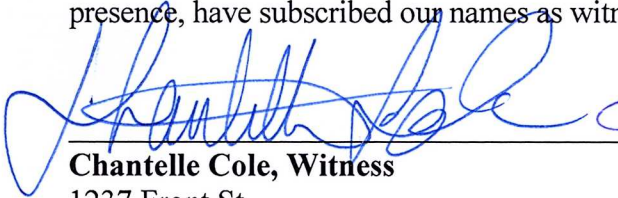
Testatrix and Witnesses

I, Berdia Monson, the Testatrix, sign my name to this instrument, consisting of 22 pages, on August 14, 2023, and do hereby declare that I sign and execute this instrument as my last will and testament, that I sign it willingly, that I execute it as my free and voluntary act for the purposes therein expressed, and that I am eighteen years of age or older, of sound mind, and under no constraint or undue influence.

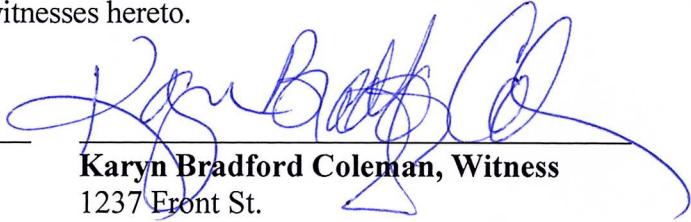


Berdia Monson, Testatrix

This instrument, consisting of 22 pages, was on the date hereof declared by Berdia Monson to be her last will and testament, and she either herself signed it at the end thereof or acknowledged her signature already made in the presence of us who, at her request and in her presence, have subscribed our names as witnesses hereto.



Chantelle Cole, Witness
1237 Front St.
Conway, Arkansas 72032



Karyn Bradford Coleman, Witness
1237 Front St.
Conway, Arkansas 72032

Affidavit of Subscribing Witnesses (Self-Proof)

STATE OF ARKANSAS)

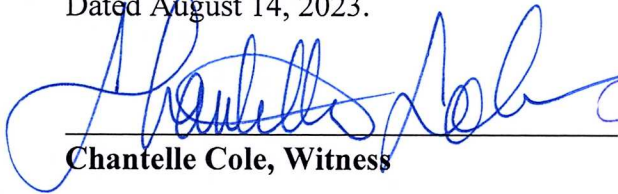
COUNTY OF PULASKI)

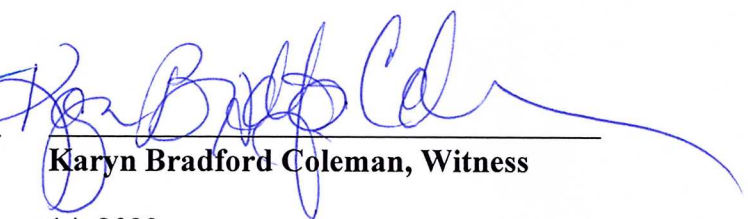
We, the undersigned, on oath state that we are the subscribing witnesses to the attached written instrument dated August 14, 2023, which purports to be the last will and testament of Berdia Monson. On the execution date of the instrument, Berdia Monson, in our presence, either herself signed the will at the end thereof or acknowledged her signature already made, and requested that we attest to the execution thereof whereupon, in the presence of Berdia Monson, each of us signed our respective names as attesting witnesses.

At the time of the execution of this instrument, Berdia Monson appeared to be over eighteen (18) years of age, of sound mind, and acting without undue influence, fraud, or restraint.

We declare under penalty of perjury under the laws of state of Arkansas that the foregoing is true and correct.

Dated August 14, 2023.

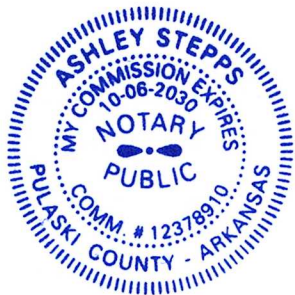

Chantelle Cole, Witness


Karyn Bradford Coleman, Witness

Subscribed and sworn to before me on August 14, 2023.

Witness my hand and official seal.

[Seal]



Ashley Stepps, Notary Public
My commission expires October 6, 2030
Notary registration no. 12378910

Last Will and Testament of Berdia Monson

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